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**IN THE MATTER OF THE ARJAN SINGH PUNIANI
CU26-05914**

Motion by Petitioner for Peremptory Writ of Administrative Mandate and Application for Stay

TENTATIVE RULING

C.C.P. §1094.5 governs petitions for writs of administrative mandamus.

Subsection (b) requires, among other things, a fair administrative hearing. The inquiry in such a case shall extend to the questions whether the respondent has proceeded without, or in excess of, jurisdiction; whether there was a fair trial; and whether there was any prejudicial abuse of discretion. Abuse of discretion is established if the respondent has not proceeded in the manner required by law, the order or decision is not supported by the findings, or the findings are not supported by the evidence.

A fair administrative hearing starts with advance notice of the accusations and the opportunity of the accused to explain their version of the events.

Generally, a fair procedure requires “notice reasonably calculated to apprise interested parties of the pendency of the action ... and an opportunity to present their objections.” (Bergeron v. Department of Health Services (1999) 71 Cal.App.4th 17, 24 [83 Cal. Rptr. 2d 481]; see also Rosenblit v. Superior Court (1991) 231 Cal.App.3d 1434, 1445 [282 Cal. Rptr. 819] [“Notice of the charges sufficient to provide a reasonable opportunity to respond is basic to the constitutional right to due process and the common law right to a fair procedure.”].) With respect to student discipline, “[t]he student's interest is to avoid unfair or mistaken exclusion from the educational process, with all of its unfortunate consequences. ... Disciplinarians, although proceeding in utmost good faith, frequently act on the reports and advice of others; and the controlling facts and the nature of the conduct under challenge are often disputed. The risk of error is not at all trivial, and it should be guarded against if that may be done without prohibitive cost or interference with the educational process.” (Goss v. Lopez (1975) 419 U.S. 565, 579–580 [42 L. Ed. 2d 725, 95 S. Ct. 729] (Goss).)

“At the very minimum, therefore, students facing suspension ... must be given some kind of notice and afforded some kind of hearing.” (Goss, *supra*, 419 U.S. at p. 579, italics omitted.) The hearing need not be formal, but “in being given an opportunity to explain his version of the facts at this discussion, the student [must] first be told what he is accused of doing and what the basis of the accusation is.”

(Id. at p. 582.) Doe v. University of Southern California (2016) 246 Cal.App.4th 221, 240.

Adequate notice does not appear to be an issue in the present case. The email notice of hearing described in sufficient detail the incidents at issue, based on the accusations regarding harassment of Petitioner's landlady. [Administrative Record Pages 0138-0139].

There are few if any fixed requirements for the administrative hearing itself, other than it provide the accused a fair opportunity to respond to the charges; a.k.a. a "meaningful opportunity to be heard". Boormeester v. Carry (2023) 15 Cal.5th 72, 89-90.

As another court explained:

[T]he "common law requirement of a fair procedure does not compel formal proceedings with all the embellishments of a court trial [citation] nor adherence to a single mode of process." (Pinsker II, supra, 12 Cal.3d at p. 555.) Thus the court declared that it "should not attempt to fix a rigid procedure that must invariably be observed." (Ibid.) But, the absence of "some meaningful opportunity to be heard" either "in writing or by personal appearance" meant that there had been no fair "opportunity [for the applicant] to respond to the charges raised against him . . .". Dougherty v. Haag (2008) 165 Cal.App.4th 315, 336.

Petitioner has not argued that he was not able at the disciplinary hearing to speak and respond to the basic accusations about the subject incidents.

Petitioner in part argued that he should have been provided in advance any reports the disciplinary committee was given to consider.

In general, this is one of the few strict requirements for a fair hearing.

The law is clear that a university may not base a decision to expel a student on evidence that the university has not disclosed to the student. (Southern Cal., supra, 246 Cal.App.4th at p. 247 ["common law requirements for a fair hearing under ... section 1094.5 do not allow an administrative board to rely on evidence that has never been revealed to the accused"; Doe v. Regents of University of California (2018) 28 Cal.App.5th 44, 57 [238 Cal. Rptr. 3d 843] ["The accused must be permitted to see the evidence against him. Need we say more?"].) Teacher v. California Western School of Law (2022) 77 Cal.App.5th 111, 137.

UNIVERSITY's opposition included a declaration from the co-chair of the disciplinary committee, who explained his role on the CARE Team, including his preparation of a CARE Team report, but also claimed that the CARE Team functions solely to advise and support students, and "This CARE Team report was not disclosed or reviewed by any

other members of [the disciplinary committee]”. [Declaration of Glenn Davis, ¶¶10-16, and in particular, ¶12].

The court finds insufficient evidence in the administrative record or the supplemental administrative record to confirm that the committee members were shown or otherwise provided with the CARE Team report before the vote at the conclusion of that hearing.

The failure of UNIVERSITY to present as a witness at the disciplinary hearing the witness who reported Petitioner’s alleged harassment of his landlady does not support this motion. Absent a clear UNIVERSITY policy confirming a right of cross-examination (discussed in greater detail later in this ruling), courts have found no such right, and sometimes concerns about retraumatization or retaliation that might result if an accused is provided any information about the accuser.

[A]lthough we recognize the value of cross-examination as a means of uncovering the truth [citation], we reject the notion that as a matter of law every administrative appeal ... must afford the [accused] an opportunity to confront and cross-examine witnesses.” (James v. City of Coronado (2003) 106 Cal.App.4th 905, 912 [131 Cal. Rptr. 2d 85] [discussing disciplinary actions involving police officers under Gov. Code, § 3304, subd. (b)].) In administrative cases addressing sexual assault involving students who live, work, and study on a shared college campus, cross-examination is especially fraught with potential drawbacks. The United States Department of Education Office for Civil Rights (OCR) addressed this issue in its April 4, 2011 “Dear Colleague” letter, intended as a guidance document regarding sexual violence on college campuses. It stated, “OCR strongly discourages schools from allowing the parties personally to question or cross-examine each other during the hearing. Allowing an alleged perpetrator to question an alleged victim directly may be traumatic or intimidating, thereby possibly escalating or perpetuating a hostile environment.” (OCR Dear Colleague letter, p. 12.) Doe v. University of Southern California (2016) 246 Cal.App.4th 221, 245.

Although the subject allegations of landlady harassing activities were not sexual in nature, they do support a reasonable concern of possible harassment or other intimidating activity of a witness required to testify at an administrative hearing such as this disciplinary proceeding.

One of the few principles applicable to the flexible fair hearing requirement for an administrative hearing is that the public agency follow any rules it has adopted for such a hearing.

“Fair hearing requirements are ‘flexible’ and entail no ‘rigid procedure.’” (Allee, supra, 30 Cal.App.5th at p. 1062.) Indeed, “[u]ntil recently, few cases had attempted to define ‘fair hearing standards for student discipline at private universities.’” (Id. at p. 1061.) However, as outlined in part I., ante, one of the

principles that is well established, and that CWSL does not dispute, is that a “university must comply with its own policies and procedures.” (Southern Cal., *supra*, 246 Cal.App.4th at p. 239, citing *Berman v. Regents of University of California* (2014) 229 Cal.App.4th 1265, 1271 [178 Cal. Rptr. 3d 62] (Berman).) Teacher, *supra*, 77 Cal.App.5th at 128.

In Teacher, a law student at a private university was expelled following an administrative hearing, based on a series of emails he was alleged to have sent from two other student accounts with explicit sexual, racist or other inappropriate content, and/or printing out some materials charged to those students’ accounts. The university’s disciplinary procedures expressly provided for the right to cross-examine witnesses. Yet, at the disciplinary hearing, confirmed by the notes taken from it, the university called no witnesses, but relied solely on written materials such as the emails and computer logs (as the notice of disciplinary hearing said it would). While the trial court denied the student’s later petition for administrative mandamus, the appellate court reversed, citing the failure of the university to allow cross-examination of witnesses, in violation of its own stated procedure. The court rejected the university’s suggested interpretation of its rule that cross-examination was only promised when the university decided to bring any live witnesses to the disciplinary hearing, but instead found it to require the university to call live witnesses instead of solely relying on documents such as emails, computer printouts, and summaries of witness statements.

CWSL points to nothing to support an interpretation of the Procedures that would permit CWSL to condition an accused student's right to cross-examine witnesses on whether CWSL chooses to call such persons to provide live testimony at a PRC hearing. Such an interpretation would allow the school to circumvent the accused student's right to cross-examination by not presenting witnesses and instead, as it did in this case, expel a student based on the statements of witnesses whom the accused student was not given an opportunity to cross-examine. *Id.* at 133.

In the present case, Petitioner has not claimed any UNIVERSITY policy that guaranteed him the right to cross-examine any witnesses.

Petitioner has identified a different policy of UNIVERSITY to disciplinary hearings that he claims it violated.

UNIVERSITY’s Student Handbook includes the following policy:

In cases where the violation is reported by the CACP, the AIVR is completed and submitted to the Associate Chair of the ACP Committee. The CACP must recuse themselves from the adjudication process. [Administrative Record 0072, ¶13].

The CACP is defined elsewhere in the Handbook as “Chair of the Academic Integrity, Conduct, & Professionalism Committee.”

In general, the court defers to the administrative agency's interpretation of its own procedures.

Generally, we defer to an agency's interpretation of its own procedures. (Berman, supra, 229 Cal.App.4th at p. 1272, citing *Yamaha Corp. of America v. State Bd. of Equalization* (1998) 19 Cal.4th 1, 12 [78 Cal. Rptr. 2d 1, 960 P.2d 1031].) One "reason we give weight to the agency interpretation of its own policies and procedures is because the agency has developed a level of 'expertise' in light of its familiarity with the legal and regulatory issues." (Berman, supra, at p. 1272.) *Id.* at 130.

UNIVERSITY has taken the position that the CARE Team report was not a "report" of Petitioner's actions with his landlady meant for and sent to the disciplinary committee. It advised the other CARE Team members of safety concerns for that other student. The other student is the one who made the report of Petitioner's actions.

UNIVERSITY also claimed that the co-chair's participation in the disciplinary hearing was limited, and noted that he abstained from voting on the committee's decision to expel Petitioner.

The court finds this to be a reasonably plausible interpretation of this policy and UNIVERSITY's actions not being in violation of it.

Petitioner's reply identified a different provision in the Handbook, one which reads:

The reported student and the person who reported the student will be afforded the following opportunities:

- a) To review, but not copy, all pertinent information to be presented to the Committee. [Administrative Record 0077].

There is a due process issue that may preclude the court from considering the merits of this argument at this time.

In general, a moving party cannot wait until reply to raise a new argument in support of the motion. In such circumstances, the court can refuse to consider the new argument. 2 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §9:106.1, pp. 96-97.

Even if the court were able to consider this new argument at this time, it would not change the outcome.

One of the reasonably plausible interpretations of this provision is to require prehearing disclosure only of the charges themselves and whatever else might be provided to the

committee members before they were to vote on what the committee decided. Relevant to a different issue, and as stated earlier in this ruling, UNIVERSITY's opposition claimed that the committee members were provided with the charges identified in the email notice of hearing but not the CARE Team report or notes from discussions with the witness whose identity is being protected, and the available administrative record does not contradict this claim.

Thus, the court finds no merit to this motion, and denies it in its entirety.

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**IN THE MATTER OF THE PATRICIA DALE NEUKIRCH REVOCABLE TRUST
DATED SEPTEMBER 6, 2023, AS AMENDED
PR25-00310**

Petition for Approval of the First and Final Account and Report of Successor Trustee and
Petition for Instructions on Final Distribution (Verified)

Objection to Petition for Approval of the First and Final Account and Report of Successor
Trustee and Petition for Instructions on Final Distributions (Verified) (filed by Kayla
Hansen)

Verified Response and Limited Objection of Beneficiary Kirk Richard Tabayoyon to
Petition for Approval of First and Final Account and Report of Successor Trustee and
Petition for Instructions on Final Distribution (filed by Kirk Richard Tabayoyon)

PREGRANT ORDER

This matter was continued from March 5, 2026 to allow the parties to participate in court-
sponsored mediation.

Counsel and parties may appear via Zoom, in person, or by CourtCall and address the
following:

Status of mediation.

9:30 a.m. CALENDAR

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**IN THE MATTER OF THE KATHLEEN TREICHLER SPECIAL NEEDS TRUST
FPR045528**